

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 28, 2026 AT 8:30 A.M.

10. S-CV-0053907 EDMONDS, LANCE v. RED WOLF LODGE AT OLYMIC VALLEY

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Squaw-Tahoe Resort Time Interest Owners' Association's Demurrer to the First Amended Complaint (FAC)

Ruling on Request for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained in its entirety without leave to amend.

In the current request, defendant demurs to the first cause of action for battery; third cause of action for intentional infliction of emotional distress; fourth cause of action for fraudulent concealment; fifth cause of action for private nuisance; and seventh cause of action for breach of contract. Defendant contends that all five challenged causes of action are deficiently pleaded, failing to allege sufficient facts to support any of the claims.

The court has carefully read the FAC, giving the pleading a reasonable interpretation while reading the documents as a whole and considering each part in their context. (*Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42, superseded by statute on other grounds in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 269.) A review of the five causes of action show that each is deficiently pleaded, failing to allege sufficient facts to support any of the challenged claims. (Defendant's demurrer pp. 4:14-5:23; 5:27-7:21; 7:26-8:21; 8:26-9:9; 9:20-10:10; Code of Civil Procedure section 472d.)

Plaintiff failed to file any opposition to the pending demurrer, which the court construes as plaintiff having abandoned each of the challenged claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Thusly, the demurrer is sustained without leave to amend.

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